where the vessel may be found, seized, or carried. (R. S. § 2159; Mar. 3, 1911, ch. 231, § 291, 36 Stat. 1167.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340.

§ 333. Building vessels to engage in cooly trade; penalty.

Every person who so builds, fits out, equips, loads, or otherwise prepares, or who sends to sea, or navigates, as owner, master, factor, agent, or otherwise, any vessel, belonging in whole or in part to a citizen of the United States, or registered, enrolled, or licensed within the same, knowing or intending that such vessel is to be or may be employed in that trade, contrary to the provisions of section 331 of this title, shall be liable to a fine not exceeding $2,000, and be imprisoned not exceeding one year. (R. S. § 2160.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 2, 12 Stat. 340.

§ 334. Punishment for engaging in cooly trade.

Every citizen of the United States who, contrary to the provisions of section 331 of this title, takes on board of any vessel, or receives or transports any such subjects as are described in that section, for the purpose of disposing of them in any way as therein prohibited, shall be liable to a fine not exceeding $2,000 and be imprisoned not exceeding one year. (R. S. § 2161.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 3, 12 Stat. 340.

§ 335. Voluntary emigration of "coolies" excepted.

Nothing contained in sections 135, 331–334, and 337 of this title shall be deemed to apply to any voluntary emigration of the subjects specified in section 331 of this title, or to any vessel carrying such person as passenger on board the same, but a certificate shall be prepared and signed by the consul or consular agent of the United States residing at the port from which such vessel may take her departure, containing the name of such person, and setting forth the fact of his voluntary emigration from such port, which certificate shall be given to the master of such vessel; and the same shall not be given until such consul or consular agent is first personally satisfied by evidence of the truth of the facts therein contained. (R. S. § 2162.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 4, 12 Stat. 341.

§ 336. Same; inquiry and certificate by consular officer.

In determining whether the immigration of any subject of China, Japan, or any oriental country, to the United States, is free and voluntary, as provided by section 335 of this title, it shall be the duty of the consul general or consul of the United States residing at the port from which it is proposed to convey such subjects, in any vessels enrolled or licensed in the United States, or any port within the same, before delivering to the masters of any such vessels the permit or certificate provided for in such section, to ascertain whether such immigrant has entered into a contract or agreement for a term of service within the United States, for lewd and immoral purposes; and if there be such contract or agreement, the said consul general or consul shall not deliver the required permit or certificate. (Mar. 3, 1875, ch. 141, § 1, 18 Stat. 477.)

§ 337. Examination of vessels.

The President is empowered, in such way and at such time as he may judge proper, to direct the vessels of the United States, and the masters and commanders thereof, to examine all vessels navigated or owned in whole or in part by citizens of the United States, and registered, enrolled, or licensed under the laws thereof, whenever in the judgment of such master or commanding officer, reasonable cause exists to believe that such vessel has on board any subjects of China, Japan, or other oriental country, known as "coolies"; and, upon sufficient proof that such vessel is employed in violation of the preceding provisions, to cause her to be carried, with her officers and crew, into any port or district within the United States, and delivered to the marshal of such district, to be held and disposed of according to law. (R. S. § 2163.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 6, 12 Stat. 341.

§ 338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.

If any citizen of the United States, or other person amenable to the laws of the United States, shall take, or cause to be taken or transported, to or from the United States any subject of China, Japan, or any oriental country, without their free and voluntary consent, for the purpose of holding them to a term of service, such citizen or other person shall be liable to be indicted therefor, and, on conviction of such offense, shall be punished by a fine not exceeding $2,000 and be imprisoned not exceeding one year; and all contracts and agreements for a term of service of such persons in the United States, whether made in advance or in pursuance of such illegal importation, and whether such importation shall have been in American or other vessels, are hereby declared void. (Mar. 3, 1875, ch. 141, § 2, 18 Stat. 477.)

§ 339. Contracting to supply cooly labor.

If any person shall knowingly and willfully contract, or attempt to contract, in advance or in pursuance of such illegal importation, to supply to another the labor of cooly or other person brought into the United States in violation of section 331 of this title, or of any other section of the laws prohibiting the cooly trade, such person shall be deemed guilty of a felony, and, upon conviction thereof, in any United States court, shall be fined in a sum not exceeding $500 and imprisoned for a term not exceeding one year. (Mar. 3, 1875, ch. 141, § 4, 18 Stat 477.)

Chapter 9.—MISCELLANEOUS PROVISIONS

§§ 351–416. Repealed or transferred.

These sections, relating to naturalization, were in large degree affected by the Nationality Act of 1940, section 501 et seq. of this title. That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation.

and, in addition to certain specific repeals thereby, all acts or parts of acts in conflict with its provisions were repealed by section 904 of this title. See notes below for history of individual sections.

SECTIONS 351-354, relating to Bureau of Naturalization, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, 54 Stat. 1172. Sections 351-353 were from act June 29, 1906, ch. 3592, § 1, 34 Stat. 596, and section 354 was from act May 9, 1918, ch 69, § 1, 40 Stat. 544. Present provisions are contained in section 727 of this title. See also section 100 et seq. of this title for general provisions relating to Immigration and Naturalization Service.

SECTION 355, relating to reports of expenditures of Bureau of Naturalization, was repealed by act May 29, 1928, ch. 901, § 1, 45 Stat. 994. It was from act Mar. 4, 1909, ch. 299, § 1, 35 Stat. 983.

SECTIONS 356-358a were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 356, relating to regulations for execution of naturalization laws and use of copies of papers in evidence, was from acts June 29, 1906, ch. 3592, § 28, 34 Stat. 606, and Mar. 2, 1929, ch. 536, § 8, 45 Stat. 1515; present provisions are contained in section 727 of this title. Section 356a, relating to quarters for photographic studio in New York City, was from act May 25, 1932, ch. 203, § 9, 47 Stat. 166; present provisions are contained in section 727 (h) of this title. Sections 357 (from act June 29, 1906, ch. 3592, § 3, 34 Stat. 596, as amended Mar. 3, 1911, ch. 231, § 289, 36 Stat. 1167; June 25, 1936, ch. 804, 49 Stat. 1921), 358 (from act Mar. 2, 1917, ch. 145, § 41, 39 Stat. 965), and 358a (from act Feb. 25, 1927, ch. 192, § 4, 44 Stat. 1235), related to jurisdiction of naturalization courts; present provisions are contained in section 701 (a) of this title.

SECTION 359, relating to racial limitation of naturalization, is now set out in note under section 703 of this title It was from R. S. § 2169 (revised from act July 14, 1870, ch. 254, § 7, 16 Stat. 256), and acts Feb. 18, 1875, ch. 80, § 1, 18 Stat. 318; May 9, 1918, ch. 69, § 2, 40 Stat. 547.

SECTION 360, relating to admission of persons not citizens owing permanent allegiance to the United States, was repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, 54 Stat. 1172. It was from act June 29, 1906, ch. 3592, § 30, 34 Stat. 606. Present provisions are contained in section 721 of this title.

SECTION 361, relating to period of residence required for citizenship, was repealed by act Mar. 2, 1929, ch. 536, 45 Stat. 1514. It was from R. S. § 2170, which was revised from act Mar. 3, 1813, ch. 42, § 12, 2 Stat. 811.

SECTION 362, forbidding naturalization of citizens within thirty days preceding a general election, was repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. It was from act June 29, 1906, ch. 3592, § 6, 34 Stat. 598. Present provisions are contained in section 734 (c) of this title.

SECTION 363, making Chinese inadmissible to citizenship, is now set out in note under section 703 of this title. It was from act May 6, 1882, ch. 126, § 14, 22 Stat. 61.

SECTIONS 364-366a, relating to persons inadmissible to citizenship, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Sections 364 and 365 were from act June 29, 1906, ch. 3592, §§ 7, 8, respectively, 34 Stat. 598, 599; present provisions are contained in sections 705 and 704, respectively, of this title. Section 366a was from act Feb. 11, 1931, ch. 118, 46 Stat. 1087. Section 366 was from acts May 18, 1917, ch. 15, § 2. 40 Stat. 77; July 9, 1918, ch. 143, § 4, 40 Stat. 885.

SECTIONS 367-368a, relating to naturalization of women, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. They were from act Sept. 22, 1922, ch. 411, §§ 1, 2, 3 (c), respectively, 42 Stat. 1021, 1022, as amended Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511; May 17, 1932, ch. 190, 47 Stat. 158; May 24, 1934, ch. 344, § 4, 48 Stat. 797. Present provisions on the subject of section 367 are contained in section 702 of this title; and on the subject of 368, in sections 710, 711, 712 of this title.

SECTION 368b, relating to citizenship of women born in Hawaii prior to June 14, 1900, is now set out in note under section 717 of this title. It was from acts July 2, 1932, ch. 395, 47 Stat. 571; July 1, 1940, ch. 495, 54 Stat. 707.

SECTIONS 369 and 369a, relating to naturalization of women, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. They were from act Sept. 22, 1922, ch. 411, §§ 4, 3 (b), respectively, 42 Stat. 1022, as amended July 3, 1930, ch. 835, § 2 (a), 46 Stat. 854; Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511. Present provisions are contained in section 717 (a) of this title.

SECTION 370, relating to naturalization of women married to aliens ineligible to citizenship, was repealed by act Mar. 3, 1931, ch. 442, § 4 (b), 46 Stat. 1512. It was from act Sept. 22, 1922, ch. 411, § 5, 42 Stat. 1022.

SECTION 371, relating to naturalization of wives and children of aliens becoming insane after declaration of intention to become citizens, was repealed by act May 24, 1934, ch. 344, § 5, 48 Stat. 798, which provided that such repeal should "not affect any right or privilege or terminate any citizenship acquired under" the section before its repeal. Section was from act Feb. 24, 1911, ch. 161, 36 Stat. 929.

SECTIONS 372-373 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 372, relating to procedure for naturalization, was from act June 29, 1906, ch. 3592, § 4, 34 Stat. 596; present provisions are contained in section 701 (d) of this title. Section 372a, relating to naturalization of former citizens, was from act Mar. 3, 1931, ch. 442, § 3, 46 Stat. 1511. Section 373, relating to declaration of intention to become citizen, was from acts June 29, 1906, ch. 3592, § 4, 34 Stat. 596; Mar. 4, 1929, ch. 683, § 1, 45 Stat. 1545; June 20, 1939, ch. 224, § 1, 53 Stat. 843; present provisions are contained in section 731 of this title.

SECTION 374, making it unlawful to make a declaration of intention on election day, was repealed by act May 25, 1926, ch. 388, § 1, 44 Stat. 652. It was from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, § 1, 40 Stat. 544

SECTION 375, providing that declarations of intention should not be required of widow or minor children of aliens dying after having filed a declaration, was repealed by act May 24, 1934, ch. 344, § 5, 48 Stat. 798, which provided that such repeal should "not affect any right or privilege or terminate any citizenship acquired under" the section before its repeal. Section was from act June 29, 1906, ch. 3592, § 4, 34 Stat. 597.

SECTION 375a, relating to exemption from declaration of intention and filing of petition by children spending childhood in the United States, is now set out in note under section 731 of this title. It was from act July 2, 1940, ch. 512, §§ 1, 2, 54 Stat. 715.

SECTION 376, providing that alien seamen declarants should be deemed citizens for purposes of protection, was repealed by act June 15, 1935, ch. 255, § 1, 49 Stat. 376. It was from act June 29, 1906, ch. 3592, § 4 (8), as amended May 9, 1918, ch. 69, § 1, 40 Stat. 544.

SECTION 377, authorizing naturalization of certain aliens erroneously exercising rights and duties of citizenship prior to July 1, 1920, was repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. It was from acts June 29, 1906, ch. 3592, § 4 (10); May 9, 1918, ch. 69, § 1, 40 Stat. 545; May 25, 1932, ch. 203, § 10, 47 Stat. 166. Present provisions are contained in section 720 of this title.

SECTION 377a, relating to naturalization of inhabitants of Virgin Islands, is now set out in note under section 731 of this title. It was from acts Feb. 25, 1927, ch. 192, § 2, 44 Stat. 1234; May 17, 1932, ch. 190, 47 Stat. 158.

SECTIONS 377b-382c were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 377b, requiring lawful entry and certificate of arrival as prerequisite to declaration of intention, was from acts Mar. 2, 1929, ch. 536, § 4, 45 Stat. 1513; May 25, 1932, ch. 203, § 6, 47 Stat. 166; present provisions are contained in section 729 (b) of this title. Section 377c, relating to photographs of aliens seeking to become citizens, was from acts June 29, 1906, ch. 3592, § 36; Mar. 2, 1929, ch. 536, § 9, 45 Stat. 1516; present provisions are contained in section 730 of this title. Section 378, enumerating conditions under which alien enemies could be naturalized, was from acts June 29, 1906, ch. 3592, § 4 (11); May 9, 1918, ch. 69, § 1, 40 Stat. 545; present provisions are contained in section 726 of this title. Section 379, relating to petitions for naturalization, was from acts June 29, 1906, ch. 3592, § 4, 34 Stat. 596; Mar. 2, 1929, ch. 536, § 6 (a), 45 Stat. 1513; June 20, 1939, ch. 224, § 2, 53 Stat. 843; present provisions are contained in sections 709 (a) and

732 of this title. Section 380, providing that certificate of arrival and declaration of intention should be made a part of petition for naturalization, was from act June 29, 1906, ch. 3592, § 4, 34 Stat. 596; present provisions are contained in section 732 (c) of this title. Section 380a, relating to fees for issuance of certificates of arrival, was from acts Mar. 2, 1929, ch. 536, § 5, 45 Stat. 1513; Apr. 19, 1934, ch 154, § 3, 48 Stat. 597; present provisions are contained in section 742 (b) (2) of this title. Section 380b, defining county as used in sections 379, 382, and 388 of this title, was from acts June 29, 1906, ch. 3592, § 35; Mar. 2, 1929, ch. 536, § 9, 45 Stat. 1516; May 17, 1932, ch. 190, 47 Stat. 158.

Sections 381 and 382, relating to oaths of aliens admitted to citizenship and certain prerequisites to admission, respectively, were from act June 29, 1906, ch. 3592, § 4, 34 Stat. 596; as amended Mar. 2, 1929, ch. 536, § 6b, 45 Stat. 1513; June 25, 1936, ch. 811, § 1, 49 Stat. 1925; June 29, 1938, ch. 819, 52 Stat. 1247; June 20, 1939, ch 224, § 3, 53 Stat. 844; present provisions on the subject of section 381 are contained in section 735 of this title; and on section 382, in sections 707, 709 (b), and 712 of this title. Section 382a, relating to absence from country as affecting continuity of residence for purpose of naturalization, was from act June 25, 1936, ch. 811, § 2, 49 Stat. 1925; present provisions relating to the same subject are contained in section 707 (c) of this title. Sections 382b and 382c, relating to temporary absences of clergymen as affecting continuity of residence, were from act Aug. 9, 1939, ch. 610, §§ 1, 2, respectively, 53 Stat. 1273; present provisions are contained in sections 708 and 727 (b), respectively, of this title.

Section 383, relating to proof of residence by deposition, was repealed by act Mar. 2, 1929, ch. 536, § 6 (e), 45 Stat. 1514. It was from act June 29, 1906, ch. 3592, § 10, 34 Stat. 599.

Section 384, relating to residence of aliens serving on vessels of foreign registry, was repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. It was from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, § 1, 40 Stat. 544; May 25, 1932, ch. 203, § 3, 47 Stat. 165. Present provisions are contained in section 707 of this title.

Section 385, relating to validation of Hawaiian jurisdiction exercised prior to Sept. 27, 1906, is now set out in note under section 701 of this title. It was from act Apr. 30, 1900, ch. 339, § 100, 31 Stat. 161, as amended May 27, 1910, ch. 258, § 9, 36 Stat. 448; Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172.

Sections 386–389 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 386, providing for the renunciation of titles of nobility by aliens seeking citizenship, was from act June 29, 1906, ch. 3592, § 4, 34 Stat. 596; present provisions are contained in section 735 (c) of this title. Section 387, relating to reimbursement for publication of citizenship textbooks, was from acts June 29, 1906, ch. 3592, § 4 (9); May 9, 1918, ch. 69, § 1, 40 Stat. 544; present provisions are contained in sections 727 (b) and 744 of this title. Section 388, relating to residence requirements for certain Filipinos and Puerto Ricans serving in military service, was from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, § 1, 40 Stat. 542; June 4, 1920, ch. 227, § 30, 41 Stat. 775; Mar. 2, 1929, ch. 536, § 6 (c), (d), 45 Stat. 1514; May 17, 1932, ch. 190, 47 Stat. 158; May 25, 1932, ch. 203, § 2 (a), 47 Stat. 165; July 30, 1937, ch. 545, § 3, 50 Stat. 548; present provisions are contained in sections 707, 724, and 725 of this title. Section 389, relating to residence of aliens conditionally serving in military services after honorable discharge, was from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, § 1, 40 Stat. 542.

Section 389a, relating to naturalization of alien veterans of World War, is now set out in note under section 724 of this title. It was from act Aug. 19, 1937, ch. 698, § 2, as added Aug. 16, 1940, ch. 684, 54 Stat. 789.

Sections 390–392, relating to naturalization of alien veterans of World War, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. They were from act June 29, 1906, ch. 3592, §§ 4 (7), 4 (13), 4 (7), respectively, as amended May 19, 1918, ch. 69, § 1, 40 Stat. 542–544.

Sections 392a–392d, relating to naturalization of alien veterans of World War, are now set out in note under section 724 of this title. Section 392a was from acts May 26, 1926, ch. 398, § 7, 44 Stat. 655; Mar. 4, 1929, ch. 683, § 3, 45 Stat. 1546. Sections 392b–392d were from acts May 25, 1932, ch. 203, § 1, 47 Stat. 165; Ex. Ord. No. 6166, § 14, June 10, 1933; June 24, 1935, ch. 288, §§ 1, 2, 3, 49 Stat. 395; Aug. 23, 1937, ch. 735, §§ 1, 2, 3, 50 Stat. 743, 744; June 21, 1939, ch. 234, §§ 1, 2, 3, 53 Stat. 851; Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172.

Sections 392e–398 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Sections 392e–392g, relating to naturalization of alien veterans of World War formerly ineligible because of race, were from act June 24, 1935, ch. 290, §§ 1–3, respectively, 49 Stat. 397, 398. Sections 393–395, relating to naturalization of alien veterans, were from acts June 29, 1906, ch. 3592, § 4 (7); May 9, 1918, ch. 69, §§ 1, 2, 40 Stat. 543, 546; present provisions are contained in sections 723 and 724 of this title. Sections 396–398, relating to time of filing petition, subpoena of witnesses, and final hearings on petitions, respectively, were from act June 29, 1906, ch. 3592, §§ 6, 5, 9, respectively, 34 Stat. 598, 599, as amended Mar. 3, 1931, ch. 442, §§ 1, 2, 46 Stat. 1511; present provisions are contained in sections 709 (d), 732 (d), and 734 of this title.

Section 398a, relating to patriotic address to new citizens, is now section 727a of this title. It was from act May 3, 1940, ch. 183, § 2, 54 Stat. 178.

Sections 399–402 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 399, authorizing the United States to appear and oppose the right of aliens to naturalization, was from act June 29, 1906, ch. 3592, § 11, 34 Stat. 599; present provisions are contained in section 734 of this title. Section 399a, relating to preliminary examination of petitioners for naturalization, was from act June 8, 1926, ch. 502, 44 Stat. 709; present provisions are contained in sections 733 and 734 of this title. Sections 399b–399d, relating to certificates of citizenship, were from acts June 29, 1906, ch. 3592, §§ 32, 33, 34, respectively; Mar. 2, 1929, ch. 536, § 9, 45 Stat. 1515; May 25, 1932, ch. 203, §§ 4, 5, 47 Stat. 165; Apr. 19, 1934, ch. 154, §§ 2, 4, 48 Stat. 597; present provisions are contained in sections 727, 730, 739, 741, 742, and 746 of this title. Section 399e, relating to annual reports of Commissioner of Immigration, was from act Mar. 2, 1929, ch. 536, § 10, 45 Stat. 1516; present provisions are contained in section 745 of this title. Section 399f, relating to counsel fees in naturalization proceedings, was from act Apr. 19, 1934, ch. 154, § 5, 48 Stat. 598; present provisions on the same subject are contained in section 742 (h) of this title. Sections 400–402, relating to clerks of naturalization courts and their fees and clerical assistants, were from act June 29, 1906, ch. 3592, §§ 12, 13, 34 Stat 600, as amended June 25, 1910, ch. 401, § 1, 36 Stat. 829; June 12, 1917, ch. 27, § 1, 40 Stat. 171; Feb. 26, 1919, ch. 49, §§ 1, 2, 40 Stat. 1182; Feb. 11, 1921, ch. 46, 41 Stat. 1099; Mar. 4, 1921, ch. 161, § 1, 41 Stat. 1412; June 10, 1921, ch. 18, § 304, 42 Stat. 24; Mar. 2, 1929, ch. 536, § 7 (a), 45 Stat. 1514; and Apr. 19, 1934, ch. 154, § 1, 48 Stat. 597; present provisions are contained in sections 737, 742, and 746 of this title.

Section 402a, relating to disposition of fees received by clerks of courts, is now set out in note under section 742 of this title. It was from act Mar. 2, 1929, ch. 536, § 7 (b), 45 Stat. 1515; Ex. Ord. No. 6166, § 14, June 10, 1933.

Sections 403–405 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Sections 403 and 404, relating to fees collectible from alien soldiers, and to recording declarations and petitions, respectively, were from act June 29, 1906, ch. 3592, §§ 4 (7), 14, respectively, 34 Stat. 601, as amended May 9, 1918, ch. 69, § 1 40 Stat. 544; present provisions are contained in sections 736, 737 (f), and 742 (1) of this title. Section 405, relating to cancellation of certificates of citizenship, was from acts June 29, 1906, ch. 3592, § 15, 34 Stat. 601; May 9, 1918, ch. 69, § 1, 40 Stat. 544; present provisions are contained in section 738 of this title.

Sections 406 and 407, validating certain certificates of naturalization, are now set out in note under section 736 of this title. They were from acts May 9, 1918, ch. 69, § 3, 40 Stat. 548, and June 29, 1906, ch. 3624, § 1, 34 Stat. 630, respectively.

SECTIONS 408–415 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Sections 408, 409, relating to naturalization forms, were from act June 29, 1906, ch. 3592, §§ 3, 27, respectively, 34 Stat. 596, 603; present provisions are contained in sections 701 (c) and 727 (d) of this title. Sections 410–415, relating to the punishment of crimes in connection with the naturalization of aliens, were from act June 29, 1906, ch. 3592, §§ 18, 20–24, respectively, 34 Stat. 602, 603; present provisions are now contained in sections 738 and 746 of this title.

SECTION 416, authorizing the punishment of offenses against the naturalization laws committed prior to May 9, 1918, under laws then in effect but since repealed, is now set out in note under section 746 of this title. It was from act May 9, 1918, ch. 69, § 2, 40 Stat. 547.

REPEAL

Effective date and saving clauses of act Oct. 14, 1940, see sections 906, 904 note, and 747 of this title.

Chapter 10.—ALIEN REGISTRATION

Sec.
451. Alien seeking entry into United States.
452 Registration of aliens in United States.
453. Special provisions governing registration.
(a) Extension of time for registration.
(b) Foreign government officials.
(c) Registration of special classes of aliens.
454. Place of registration; duties of postmasters.
455 Forms and procedure; records as confidential; oaths.
456. Notice of change of address.
457. Penalties.
458. Administration and enforcement of registration law.
459. Definitions and effective date.
(a) Definitions.
(b) Effective date.
460. Registration of aliens in Canal Zone.

NATIONALITY ACT OF 1940

On October 14, 1940, and subsequent to the enactment of this chapter, Congress passed the Nationality Act of 1940 (see section 501 et seq. of this title) for the purpose of consolidating and restating the laws of the United States upon citizenship, naturalization, and expatriation. Said act contains further provisions relating to registry of aliens (see sections 728 and 746 (l) of this title), and section 504 thereof, in addition to certain specific repeals, provided that all acts or parts of acts in conflict therewith were thereby repealed.

§ 451. Alien seeking entry into United States.

No visa shall hereafter be issued to any alien seeking to enter the United States unless said alien has been registered and fingerprinted in duplicate. One copy of the registration and fingerprint record shall be retained by the consul. The second copy shall be attached to the alien's visa and shall be taken up by the examining immigrant inspector at the port of arrival of the alien in the United States and forwarded to the Department of Justice, at Washington, District of Columbia.

Any alien seeking to enter the United States who does not present a visa (except in emergency cases defined by the Secretary of State), a reentry permit, or a berder-crossing identification card shall be excluded from admission to the United States. (June 28, 1940, ch. 439, title III, § 30, 54 Stat. 673.)

SHORT TITLE

Section 41 of act June 28, 1940, cited to text, provided: "This act (sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18, Criminal Code and Criminal Procedure) may be cited as the 'Alien Registration Act, 1940.'"

SAVING CLAUSE

Section 40 of act June 28, 1940, cited to text, provided as follows: "SEC. 40. If any provision of this Act, or the application thereof to any person or circumstance, is held invalid, the remainder of the Act, and the application of such provision to other persons or circumstances, shall not be affected thereby."

§ 452. Registration of aliens in United States.

(a) It shall be the duty of every alien now or hereafter in the United States, who (1) is fourteen years of age or older, (2) has not been registered and fingerprinted under section 451 of this title, and (3) remains in the United States for thirty days or longer, to apply for registration and to be fingerprinted before the expiration of such thirty days.

(b) It shall be the duty of every parent or legal guardian of any alien now or hereafter in the United States, who (1) is less than fourteen years of age, (2) has not been registered under section 451 of this title, and (3) remains in the United States for thirty days or longer, to apply for the registration of such alien before the expiration of such thirty days. Whenever any alien attains his fourteenth birthday in the United States he shall, within thirty days thereafter, apply in person for registration and to be fingerprinted. (June 28, 1940, ch. 439, title III, § 31, 54 Stat. 673.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 453. Special provisions governing registration.

Notwithstanding the provisions of sections 451 and 452 of this title—

(a) Extension of time for registration.

The application for the registration and fingerprinting, or for the registration, of any alien who is in the United States on the effective date of such sections may be made at any time within four months after such date.

(b) Foreign government officials.

No foreign government official, or member of his family, shall be required to be registered or fingerprinted under this chapter.

(c) Registration of special classes of aliens.

The Commissioner is authorized to prescribe, with the approval of the Attorney General, special regulations for the registration and fingerprinting of (1) alien seamen, (2) holders of border-crossing identification cards, (3) aliens confined in institutions within the United States, (4) aliens under order of deportation, and (5) aliens of any other class not lawfully admitted to the United States for permanent residence. (June 28, 1940, ch. 439, title III, § 32, 54 Stat. 674.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 454. Place of registration; duties of postmasters.

(a) All applications for registration and fingerprinting under section 452 of this title shall be made at post offices or such other places as may be designated by the Commissioner.

(b) It shall be the duty of every postmaster, with such assistance as shall be provided by the Commissioner, to register and fingerprint any applicant for registration and fingerprinting under such section, and for such purposes to designate appropriate space in the local post office for such registration and